

26STCV03602 26STCV03602

County: los-angeles

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Case Number: 26STCV03602 Hearing Date: July 13, 2026 Dept: 32

SHIN P. YANG,

Plaintiff,

v.

KAZN AM 1300, et al.,

Defendants.

Case No.: 26STCV03602

Hearing Date: July 13, 2026

[TENTATIVE]

order RE:

plaintiff's motions to compel responses
to discovery (CRS# 4691, 5990, 7167)

BACKGROUND

On February 3, 2026, Plaintiff Shin

P. Yang filed this action against Defendants KAZN AM 1300 and Yvonne Liu, asserting (1) equitable enforcement of oral settlement agreement, (2) promissory estoppel, and (3) breach of the implied covenant of good faith and fair dealing.

The dispute originates from an earlier litigation regarding breach of an advertising agreement, Shin Yang, et al. v. KAZN 1300, et al. (19STCV11399). During the trial in that earlier action, the parties allegedly reached an oral settlement before the court. The alleged agreement was for Defendants to pay Plaintiff \$250,000 and provide Plaintiff with one year of free radio advertising in exchange for dismissal of the lawsuit. Plaintiff alleges that Defendants have failed to perform their obligations under the settlement agreement.

On June 11, 2026, Plaintiff filed the instant three motions to compel responses to form interrogatories and to deem matters admitted. Defendants have not filed an opposition.

LEGAL STANDARD

Discovery responses are due 30 days after service of the requests, unless the parties stipulate or the court orders otherwise. (Code Civ. Proc., §§ 2030.260(a), 2031.260(a), 2033.250(a).) If a responding party fails to respond in time, the propounding party may move for an order compelling the responses or deeming matters admitted. (Id., §§ 2030.290(b), 2031.300(b), 2033.280(b).) The responding party also waives all objections and the right to produce writings under section 2030.230. (Id., §§ 2030.290(a), 2031.300(a), 2033.280(a).)

DISCUSSION

Plaintiff served the subject discovery on May 1, 2026. (Carleo Decl. ¶ 4.) Defendants did not serve responses by the deadline, despite a reminder. (Id., ¶¶ 5-6.) Thus, an order compelling the responses to the FROGs is warranted. The RFAs are deemed admitted unless Defendants serve substantially compliant responses before the hearing on the motions. (See Code Civ. Proc., § 2033.280(c).)

Sanctions are also warranted as Defendants have presented no substantial justification for their failure to respond. Plaintiff claims to have incurred \$1,200 (3 hrs. x \$400) for each motion. (Carleo Decl. ¶ 8.) The Court finds that \$1,200 is the reasonable amount for all three motions combined. Moreover, Plaintiff incurred \$180 in filing fees. Therefore, the Court awards \$1,380.

CONCLUSION

Plaintiff's motion to compel responses to form interrogatories (CRS# 5990) is GRANTED. Defendant Yvonne Liu shall provide responses to the form interrogatories within 15 days of today.

Plaintiff's motions to deem matters admitted (CRS# 4691, 7167) are GRANTED unless Defendants KAZN AM 1300 and Yvonne Liu serve substantially compliant responses before the hearing on the motions.

The Court sanctions Defendants and their counsel, jointly and severally, in the amount of \$1,380, to be paid within 30 days of today.